

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

DEFENDANT'S MOTION FOR TERMINATING SANCTIONS/PLAINTIFF'S MOTION FOR RELIEF OF ORDER FOR FINANCIAL HARDSHIP

This matter involves a lengthy and ongoing dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.")

Before the Court is the motion for terminating sanctions filed by Lakeside Ventures, LLC and Bonnie K. Tuckerman-Aho (Hurley) ("Defendants.") Plaintiff Helen Ariza ("Plaintiff") has not filed an opposition to the motion for terminating sanctions, but has filed a separate motion for relief from order that the Court is treating as opposition to the motion for terminating sanctions.

California discovery law authorizes a range of penalties for conducting amounting the "misuse of the discovery process." (Code Civ. Proc. §2023.030.) Misuses of the discovery process include "[u]sing a discovery method in a manner that does not comply with its specified procedures" (Code Civ. Proc. § 2023.010(b)); "[f]ailing to respond or to submit to an authorized method of discovery" (id., subd. (d)); "[m]aking an evasive response to discovery" (id., subd. (f)); and "[d]isobeying a court order to provide discovery" (id., subd. (g).)

In selecting the appropriate sanction, a trial court "should consider both the conduct being sanctioned and its effect on the party seeking discovery." (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) The Court should also attempt to tailor the sanction to the harm caused by the discovery abuses. (*Ibid.*)

"A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Throughout the length of this matter, Plaintiff has continually committed discovery violations and been sanctioned by the Court.

- On June 13, 2025, the Court denied Plaintiff's discovery motion and found multiple deficiencies with that motion, including the failure to file a separate motion for each type of discovery sought, the failure to meet and confer, and the failure to provide a mandatory separate statement. At that time, the Court granted Defendant Garrett Smith's motion for sanctions and imposed a \$500 sanction on Plaintiff. To date, Plaintiff has failed to pay that sanction. (Declaration of Matt Corsault ("Corsault Decl.") ¶ 4.)
- On July 23, 2025, the Court entered sanctions against Plaintiff for \$1,500.00 based on her failure to withdraw a baseless motion to have Defendants' attorney disqualified. Plaintiff paid those sanctions. (Declaration of Kathleen Finnerty ("Finnerty Decl.") ¶ 5.)
- On January 16, 2026, Plaintiff attended her noticed deposition but failed to bring any of the requested documents, despite admitting their existence. (Finnerty Decl. ¶ 7.)
- On January 29, 2026, Plaintiff failed to produce her expert witness for a noticed deposition on a variety of baseless grounds. Plaintiff then filed a meritless motion to quash. The Court denied that motion, ordered the expert deposition to take place, and imposed \$4,000.00 in sanctions on Plaintiff ("Expert Depo Sanctions.") Plaintiff did not pay the \$4,000.00 and did not produce code-compliant responses with the expert deposition. (Finnerty Decl. ¶ 12.)
- On March 3, 2026, this Court imposed additional sanctions against Plaintiff in the amount of \$5,000.00, payable no later than March 6, 2026. The Court also imposed evidentiary sanctions and issue sanctions dismissing Plaintiff's claim for specific performance and precluding Plaintiff from offering evidence that she had a loan in place to close escrow based on her perjured testimony under oath and her spoliation of evidence. Plaintiff did not pay these sanctions. (Finnerty Decl. ¶¶ 14-15.)

To date, the Court has imposed \$11,000.00 in sanctions on Plaintiff, of which \$9,500.00 remain unpaid, and, more importantly, has imposed evidentiary and issue sanctions, as well as findings of meritless filings, perjured testimony under oath, and spoliation of evidence.

Plaintiff did not file any opposition to the motion for terminating sanctions, though she has sought relief from the Expert Depo Sanctions of \$4,000. In her motion seeking such relief, Plaintiff argues that she is a pro se litigant with limited income and that she is willing to pay \$100 per month. She argues that she had various medical conditions that contributed to her failure to work with counsel regarding the expert's deposition. However, the Court entered those sanctions against her on January 29, 2026, and ordered Plaintiff to pay those sanctions within 20 days or by February 26, 2026, but Plaintiff did not file her motion for relief until March 17, 2026 – after yet another \$5,000 sanction was imposed and not paid, with no explanation provided for her lack of diligence in seeking relief.

The Court finds that in the face of Plaintiff's multiple discovery violations, disingenuous conduct, and failure to comply with Court orders, that the disentitlement doctrine – the principle that when a party violates a court order, that party is barred from seeking relief from the Court [MacPherson v MacPherson (1939) 13 Cal 271; Doe v Superior Court (1990) 222 CalApp3d 1406, 1409] – applies here and **Plaintiff's Motion for Relief is DENIED**, and terminating sanctions are appropriate. Accordingly, **Defendants' motion for terminating sanctions is GRANTED**.

As plaintiff's transgressions equally affect all Defendants, the **Court Orders the Complaint Dismissed**; the **Trial Confirmation Conference on 7/7/26 and the Jury Trial scheduled to commence on 7/8/26 are VACATED**.

A default prove-up hearing is set for May 15, 2026, at 9:00 a.m. in Department 2, at which time all Cross-Complainants may present evidence of their damages on the following claims: (1) Breach of Contract; (2) Trespass; (3) Ejectment; (4) Possession; and (5) Writ of Possession.

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling.

**LAKES TREATMENT CENTER, et al v RESORT AT LAKE
TULLOCH, LLC, et al**

21CV45585

**DEFENDANT DIAMOND DIRT, LLC'S MOTION TO COMPEL
FURTHER RESPONSE AND PRODUCTION OF DOCUMENTS**

This case stems from a property dispute between The Lakes Treatment Center, Inc. ("Lakes") and Bernadette Cattaneo ("Cattaneo") (collectively "Plaintiffs") and The Resort at Lake Tulloch, ("Resort"), Narullah Safdari ("Safdari"), Odell Tristin ("Tristin"), Michael Van ("Van"), Andreas Ambramson ("Ambramson"), and Diamond Dirt LLC ("Diamond") (collectively, "Defendants.")

Now before the Court is a motion to compel production of documents brought by Diamond against Cattaneo.

I. Procedural History

On or about April 22, 2022, Cattaneo issued a subpoena to the Custodian of Records for Eide Baily ("2022 Subpoena") which is the accounting firm that has provided professional services to several parties involved in the instant lawsuit. (Declaration of George P. Rodarakis ¶ 3.) Cattaneo sought information related to the finances and tax returns of the Resort. (*Ibid.*)

In October of 2022 parties entered a Stipulation ("Eide Baily Stipulation") pursuant to which any additional document requests, including tax documents, related to Cattaneo were added to the requests to which Eide Baily was to respond. (Rodarakis Decl. ¶ 3, Ex. A.) The parties stipulated that the requests in the 2022 Subpoena "were relevant and properly discoverable and waived objections based on privacy. (Ex. A.)

In or about December 2023, Eide Bailey produced some tax returns for Cattaneo for the years 2012 and 2016-2021. (*Ibid.*)

On or about April 25, 2025, Diamond served Cattaneo with Requests for Productions of Documents, Set One ("RFP, Set One"). Among the requests was RFP No. 53 which requested all of Cattaneo's tax returns from 2010 to 2023. (Rodarakis Decl. ¶ 5.) In response, Plaintiff made multiple objections, including general privacy rights, and stated that she would not produce anything "beyond what has already been produced in this action." (*Id.* ¶ 6, Ex. B.)